



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedure on the Custody, Security and Disposal of Property in Police Custody

Title: JCF Policy and Standard Operating Procedure on the Custody, Security and Disposal of Property in Police Custody	Number JCF/FW/PR/Ops/0007/2022
Effective Date: December 12, 2024	Pages:
Review Date: December 9, 2024	Distribution: Force Wide
Revision # 1	Process Owners: Deputy Commissioner Police Strategic Operations Portfolio
Rescinds: Force Orders #2235	
Authors: Operations Branch	Owner: JCF
Publication: F.O. #2235 1992-April- 5	Review: Biennially

Table of Contents

1. Introduction	3
2. Purpose	3
3. Scope	3
4. Abbreviations and Acronyms	3
5. Definitions	3
6. Responsibility	4
7. Policy Statement	4
8. Standard Operating Procedure	4
9. Legislative Authority/Guiding Principles	12
10. Relevant Documents and Forms	12

1. Introduction

The Jamaica Constabulary Force (JCF) will safeguard and properly dispose of all property in their custody whether it is Force property, other custodial property or exhibit. The (JCF) will strive to maintain property in the same condition as received and to preserve the evidentiary integrity of property which has been received for possible court presentation unless property is earmarked for presentation in court or for disposal otherwise, every reasonable effort will be made to ensure its return to the rightful owner. Property which cannot be returned to the owner shall be disposed of by public auction or, in the case of illegal substance by destruction or otherwise ordered by the court.

2. Purpose

The purpose of this policy and SOP is to establish and reinforce guidelines and procedures to ensure an effective and efficient property management system within the Jamaica Constabulary Force.

3. Scope

This Policy and Standard Operating Procedure applies to all members of the JCF. It deals specifically with guidelines for the management of the following:

- 3.1 Government owned property;
- 3.2 Custodial property and exhibits;
- 3.3 Found property;
- 3.4 Property held for safekeeping.

4. Abbreviations and Acronyms

JCF Jamaica Constabulary Force

5. Definitions

5.1 Government Owned Property is defined as all Force or Government owned property and shall include motor vehicles, office furniture, office supplies, ammunition equipment, (arms, ammunition, riot equipment and uniforms).

5.2 Custodial Property and Exhibits is defined as property held for safekeeping and property being held as exhibit.

5.3 Found Property is custodial property that comes into the possession of the Force, where ownership is unknown, and is to be held until its rightful owner can be established.

5.4 Property Held for Safekeeping is custodial property that comes into the possession of the Force where ownership is either known or unknown, and is to be held until its proper disposition is authorized by the court, the Commissioner of Police or its owner.

6. Responsibility

Services Branch

Shall have specific responsibilities for property management functions at Central Stores, Establishment Section of the Personnel Division, Armoury, and Transport and Repairs Maintenance Division.

Store Supervisor

Control and accountability are vested in each exhibit store and central store keeper supervisor. He/she shall be responsible for the security of all property/exhibits and to ensure that only authorized personnel shall be granted access to the property storage area.

7. Policy Statement

It is the policy of the JCF that:

- 7.1 property held for safe keeping is handled with integrity and are returned to owner in the state received.
- 7.2 all properties being managed, are inventoried , labelled and recorded in the relevant registers.
- 7.3 Found property are returned to legitimate owners
- 7.4 Exhibits are managed in accordance with law

8. Standard Operating Procedure

8.1 Property Records

- 8.1.1 Fundamental to the property management operation is a property records system that provides for accountability and an inventory of all property.

8.2 Transport and Repairs Records

- 8.2.1 Shall reflect an inventory of all vehicles assigned to the J.C.F., their location of assignment and their maintenance status. A master inventory of all J.C.F. vehicles is kept by the Office of the Ministry of National Security. Once each year the Internal Auditors shall audit such records for accountability.

8.3 Office Supplies/Stationery

- 8.3.1 Establishment Section of Personnel Division shall keep records for each JCF divisional headquarters. These files shall reflect all requisitions and supply of office supplies to each divisional headquarters .

8.4 Headquarters Stores Records

- 8.4.1 shall be maintained in a JCF property ledger log book itemizing all JCF requisitions, property ordered, property issued and to whom, with a report of all requests, receipts, and dispersals sent to the Commanding Officer, Services Branch, each week.

8.5 Exhibit Stores records

- 8.5.1 shall be maintained in each facility in the JCF by an exhibit log book documenting every exhibit received and its present status. Such documentation shall be a complete description of all pertinent information regarding each exhibit.

8.6 Armoury Records Shall be Maintained in the Following firearms registers:

- 8.6.1 Divisional Firearms Register;
- 8.6.2 C.I.B. Central Firearms Register;
- 8.6.3 Firearms Users Employers Certificate Register;
- 8.6.4 Firearms License Register;
- 8.6.5 Ammunition Stock Book;
- 8.6.6 Firearm Stock Book;
- 8.6.7 Police personnel firearms Register;
- 8.6.8 Reported lost or stolen firearms Register.

8.7 Property for Safekeeping

- 8.7.1 Property held by the Force for safekeeping may be returned to the owner when the owner is known and the original purpose for safekeeping has been satisfied.

- 8.7.2 Property held by the Force for safekeeping shall not be released or returned to the owner if release of the property would pose a threat or danger to the owner or another person.
- 8.7.3 Property authorized to be held for safekeeping by the Commissioner of Police or the courts cannot be released without prior approval of the Commissioner or the court.
- 8.7.4 Property held by the Force for safekeeping, where the owner is not known, shall be held for a period of three (3) months, after which the procedures outlined in Section 45(1) of the Constabulary Force Act shall be followed unless otherwise directed by the courts or the Commissioner of Police.
- 8.7.5 A deceased's property, held for safekeeping, shall only be released to an authorized relative of the deceased, or as directed by the court or the Administrator General.
- 8.8 **Found property**
 - 8.8.1 Found or lost property shall be handled with the same care and security as any exhibit would be.
 - 8.8.2 Any found or lost property that comes into the possession of the JCF shall be recorded in both the Station Diary and in the general property register. C.A J.C.F. Property Card shall be filled out and attached to said property.
 - 8.8.3 If the owner is known, that person shall be notified forthwith and the property returned to the rightful owner who shall sign in the appropriate column of the register. This must be witnessed by at least two persons. (In this instance, a property transfer receipt) shall be filled out with one copy provided to the owner and one copy retained for Force Records.
 - 8.8.4 If the owner is not known, every reasonable effort shall be undertaken to establish ownership. If ownership cannot be determined within three (3) months, the procedures outlined in Section 45(1) of the Constabulary Force Act shall be followed.
 - 8.8.5 Official Documents found such as licenses and passports shall be turned over to the appropriate Government agency or Embassy. In this case, a property transfer receipt shall be filled out with one copy given to the person receiving the item and one copy retained for Force Records. This transaction shall be recorded in the station diary and in the general property register.

8.9 Exhibit Property

8.9.1 Procedures for JCF exhibit property disposition are outlined in Force Orders relating to Control of Crime Scenes and Evidence, Firearms taken into Police Custody and Custody of Drugs.

8.10 Security

8.10.1 All exhibits stores, central and station stores areas shall be restricted to employees assigned to that section. The entry of all other persons into that area without proper authority is prohibited. When the regular store keeper is not available after normal business hours, the care and security of property coming into the custody of the Force in their absence will be the responsibility of the Senior Supervisor on duty at the time.
At all times all exhibits and Station stores shall be maintained in a secured fashion. Items of property requiring added protection to include money, precious metals, jewellery, gemstones, weapons, narcotics and dangerous drugs, shall be stored in a separate, locked, secure area within the exhibit store.

8.11 Inspections, Inventory and Audits

8.11.1 Unannounced inspections: The Commissioner of Police will direct that a semi-annual unannounced inspection be conducted of all Force exhibit and property stores- The inspection shall be conducted and supervised by the Inspection Branch with reporting responsibility to the Commissioner of Police.

8.12 Annual Inventory/Audits:

8.12.1 In conjunction with the Chief Internal Auditor of the Ministry of National Security, the Inspection Branch shall conduct an annual inventory or audit to determine that a record of property held are correct and the property accounted for.

8.13 Special Inventory:

8.13.1 Whenever a new exhibit store keeper or property store keeper is assigned, the new exhibit store keeper and/or property store keeper shall conduct an inventory of property held. The purpose of this inventory is to determine that records are correct, properly annotated and that property is accounted for.

8.14 Store Keeper and Exhibit Store Keeper:

8.14.1 At least once each month, the Central Store Keeper and all station exhibit store keepers shall conduct an evaluation of procedures to ensure that there is adherence to this Force Orders and all other relevant Force Orders relating to the area of responsibility.

8.15 Procurement of Force Property

8.15.1 This function is the responsibility of the Services Branch with approval of the permanent Secretary in the Ministry of National Security. Within the Services Branch there are three entities that are delegated specific procurement responsibilities:

8.15.1.1 **Headquarters Stores** - uniforms, capital equipment and maintenance supplies;

8.15.1.2 **Headquarters Armoury** - all ammunition;

8.15.1.3 **Transport and Repairs** - all Force vehicles, and within Personnel Division, the Establishment Section responsible for all office supplies.

8.16 Procedures for Procurement of Uniforms and Capital Equipment through Headquarters Stores are as follows:

8.16.1 Prior to the first day of March of each year, the Commander of each station shall submit to his/her Divisional Officer, a supply requisition itemizing their projected needs for the following year. A justification for these requests shall accompany the requisition;

8.16.2 Each Divisional Officer shall then complete a master Divisional requisition, listing all items approved. The master Divisional requisition and justifications shall then be forwarded to the Officer in charge J.C.F. Headquarters Stores prior to April 1;

8.16.3 Once the Officer in charge Headquarters Stores has received all Divisional Headquarters yearly requisitions, the total Force requisition request shall then be forwarded to the Deputy Commissioner for Services.

8.16.4 the Office of the Deputy Commissioner of Police for Services shall then review the Force's requests and make a judgement as to what request should be approved and forward these to the permanent Secretary, Ministry of National Security for review;

8.16.5 The Permanent Secretary, Ministry of National Security has final authority for approval of all Force requests for equipment and supplies.

8.16.6 When property and equipment are ordered and delivered to Headquarters Stores for distribution, it shall be recorded in the Headquarters Stores ledger and the appropriate Divisional Officers

notified. Once delivered, a delivery receipt shall be filled out in triplicate with one copy given to the person receiving the items and two retained for Headquarters Stores' records;

- 8.16.7 it shall be the responsibility of the Officer in charge Headquarters Stores and the supervisors in charge of all divisional or Station stores to ensure that all Force property is maintained in a state of operational reading at all times;
- 8.16.8 it shall be the responsibility of Headquarters Stores to facilitate any requests for repairs of capital equipment;
- 8.16.9 If, in the judgement of the Commissioner of Police, an employee is responsible for the loss or damage to issued assigned equipment, that employee may be required to reimburse the JCF for the cost of replacement or repair of the item.

8.17 Procedures for Procurement of Office Supplies through the Establishment Section are as Follows:

- 8.17.1 Quarterly, all Station Commanders shall submit to their Divisional Officers a J.C.F. requisition for office supplies. Every six (6) months (January and July) they shall submit requisitions for printing material required;
- 8.17.2 Upon the receipt of the aforementioned each Divisional Officer shall review and evaluate the request and forward a master requisition for all stations under his/her command to the Establishment Section for office supplies or printing required;
- 8.17.3 Upon receipt of all requisitions for office supplies and/or printing, the establishment Section shall confer with the Government Printing Office to determine the cost of printing or office supplies that have been requested. After the cost factor has been determined, a master requisition with estimated costs will be written and forwarded to the Permanent Secretary, Ministry of National Security for review and/or approval;
- 8.17.4 When approval is received to order office supplies and printing material, the office of the Ministry of National Security shall then draft a Government of Jamaica cheque and render it to the Establishment Section who, in turn, will order and pay for the material through the Government Printing Office. Records of such transactions shall be maintained in the supply, receipt and

dispersal ledger maintained by Establishment Section. The ledger shall be audited each year by the Internal Auditors.

8.18 Procedures for Procurement of Force Vehicles

- 8.18.1 prior to March of each year, each Station Commander provides the Divisional Officer with a request and justification for new vehicles;
- 8.18.2 Each Divisional Officer then conducts a needs assessment and justification evaluation of his/her command's vehicle requirements. Once this evaluation is done, he/she shall then forward to the Officer in charge Transport and Repairs his Division's requests by April 1;
- 8.18.3 Upon receipt of all Division's vehicle requests, the Officer in charge Transport and Repairs shall conduct a new assessment of the Force's vehicle requirements. Once the assessment is concluded, a report of justification for new or replacement vehicles is forwarded to the Officer in charge of the Services Branch for review;
- 8.18.4 The Officer in charge of Services shall then forward to the Permanent Secretary, Ministry of National Security, a J.C.F. request of vehicles;
- 8.18.5 The Ministry of National Security shall then review the requests and determine what and how many vehicles shall be ordered. The Permanent Secretary shall have final approval and facilitate an ordering of vehicles.

8.19 The Procedures for Procurement of Ammunition are as Follows:

- 8.19.1 prior to March of each year, each Station Commander shall submit a request and justification for new or replacement ammunition that may be required by each Station Commander to the Divisional Officer;
- 8.19.2 upon receipt of this request for ammunition, each Divisional Officer shall review, evaluate and determine which requests should be approved. In turn, the Division's ammunition needs shall be forwarded to Headquarters Armoury prior to April 1.
- 8.19.3 the Officer in charge of Headquarters Armoury shall then review the Force's ammunition requirements and forward to the Services

Branch Officer a report and justification for new or replacement for ammunition;

8.19.4 the Officer in charge of the Services Branch shall then evaluate this request, determine what should be approved and forwarded a request and justification report to the office of the permanent Secretary, Ministry Of National Security;

8.19.5 the Permanent Secretary, Ministry of National Security has final approval for the acquisition of ammunition;

8.19.6 once each year, the Inspection Branch shall audit all armoury records of ordering, receiving, storing and distribution of Force ammunition.

8.20 Force Act

8.20.1 Nothing in this Order supersedes the procedures to be followed regarding the disposal of certain kinds of property outlined in the Constabulary Force Act Sections 44, 45, 46, 47 and 48, but rather complements the Act which also shall be followed.

8.21 J.C.F. Property/Exhibit Card Instructions

8.21.1 Property/Exhibit Number Enter the exhibit or property book number.

8.21.2 Date Received/Found/Recovered Enter date item was taken into police custody.

8.21.3 Location Received/Found/Recovered Enter the exact location where property was found or recovered.

8.21.4 Collected By Name and signature of police person who collected the property/exhibit.

8.21.5 Nature of case and number Enter Lost and found - safekeeping, Murder case exhibit or whatever the appropriate nature is and number.

8.21.6 Owner if known Enter the name, address and phone number if known.

- 8.21.7 Received from Enter the name, address and phone number if known.
- 8.21.8 Status of Property Enter a complete description of the property such as brand name, colour, serial number and any identifying information. Enter pending Court, pending recovery by owner, pending auction, pending destruction
- 8.21.9 Signature of Person Securing the Enter signature of Evidence exhibit storekeeper or other person who secured the property/exhibit.
- 8.21.10 Initials of Person handling, enter initials and date evidence anytime a person removes or handles an exhibit or property.

8.22 **J.C.F. Property/Exhibit Card**

- 8.22.1 Property/Exhibit Number Date Received/Found/Recovered
- 8.22.2 Location Received/Found/Recovered
- 8.22.3 Front
- 8.22.4 Collected By
- 8.22.5 Nature Of Case And Number
- 8.22.6 Owner If Known Received From
- 8.22.7 Status Of Property
- 8.22.8 Back
- 8.22.9 Signature Of Person Securing The Evidence:
- 8.22.10 Initials Of Person And Date Of Handling Of Evidence On Form

9. **Legislative Authority/Guiding Principles**

- 9.1 Constabulary Force Act
- 9.2 Book of Rules

10. **Relevant Documents and Forms**

- 10.1 Government of Jamaica Procurement guidelines
- 10.2 Ministry of National Security Public Procurement guidelines